

Day 18

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Q1) "The office of the President of India has evolved from being a nominal head to an institution of significant influence." Examine the Constitutional provisions related to the President and analyze how the role has evolved over the years. (38 M)

Ans) The office of the President is envisaged as the Constitutional head of the Indian State. He is a part of Union executive, provisions of which are dealt with Articles 52-78. Though initially envisioned as a Ceremonial figure, it has evolved into an institution playing a crucial role in India's political and legal framework.

Constitutional Provisions related to the President

- ↳ Article 52 states that there shall be a President.
- ↳ Article 54, Election of the President by the members of an electoral College consisting of elected members of LS and RS and elected

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members of state legislative assemblies

↳ Article 55, Manner of election as Proportional representation by means of a single transferable vote by secret ballot.

↳ Article 56, President shall have a term of five years.

↳ Article 61, Procedure for impeachment of the President.

↳ Powers of the President

a) Executive Power related to the transaction of the business processes initiated by the Union government. Article 53 states that all the executive power will be vested in the President of India.

b) Legislative Power, President is part of the Parliament (Art. 79); President may summon, prorogue or dissolve the houses (Art. 85); President may address the house (Art. 86); President give assent or withhold or return the bills (Art. 111); may promulgate ordinances (Art. 123)

c) Pardoning Power to grant pardons, reprieve, respite or remission of punishment or to suspend, remit or commute the sentence. (Art. 72)

- d) Emergency powers to proclaim national emergency (Article 352), may impose President's rule (Article 356), may declare a financial emergency (Art. 360).
- e) Judicial powers to seek advice from Supreme Court on legal matters, Constitutional matters or matters of public importance.
- f) Discretionary power to appoint Prime Minister, granting pardon, using pocket veto, seeking information from Prime Minister etc.

Evolution of the President's role

The post of President of India has witnessed a dynamic evolution in their powers since the inception of the Indian Constitution in 1950.

Influenced by Constitutional amendments, Judicial interpretation, and changing political landscapes, President's powers have evolved from a Symbolic figurehead to a pivotal authority.

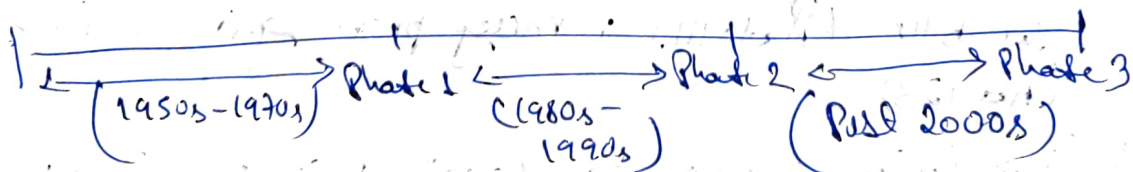


Fig: Timeline of evolution of role of President

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Phase 1: Nominal head (1950s-70s) - when Shri Rajendra Prasad first assumed office, the role was defined by a balance between ceremonial responsibilities and restricted executive authority. There was a clear separation between nominal and actual power in governance, to ensure President acts as per the advice of the government elected. With the 42nd Amendment in 1976, it was made mandatory for the President to act on the advice of the Council of Ministers.

Phase 2: Assertion of Discretion (1980s-1990s) - A crucial safeguard was introduced in 1978 through which President was allowed to request the Council of Ministers to reconsider their advice, but only once. With the start of coalition era, President's role in govt-formation became crucial. The SC's ruling in S.R. Bommai v. Union of India (1994) clarified the scope and limits of presidential authority.

Phase 3: More Active Role (2000s-Present) - With the arrival of visionary Presidents like Kalam, the nature of Presidentship

Redefined. He used Article 111 to return the Office of Profit bill for reconsideration.
K. R. Narayanan delivered speeches not vetted by the government. Poornima Mukherjee was more assertive than nearly all previous Presidents. He defied the advice of the government and commuted the death sentences of four convicts.

Factors leading to the evolution of the President's role

Profusor at the London-based Institute of Commonwealth Studies, James Morro, says Indian Presidents are not entirely rubber stamps.

- ↳ Coalition politics: President exercises more discretion in situations where no party has a clear majority.
- ↳ Judicial review: Following the misuse of emergency powers, emergency declarations were made subject to Judicial review.
- ↳ Increased judicial oversight: Ensuring that Ordinance power is used only when necessary.

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The President's role remains a complex amalgamation of ceremonial duties and situational discretion. Its evolution highlights the need to balance the symbolic role of the President with the practical demands of constitutional leadership. The Presidency, thus, stands as a testament to India's commitment to maintaining a robust and resilient democratic framework, even as it navigates the complexities of contemporary statecraft.